

Court No. - 37

Case :- WRIT - C No. - 42092 of 2017

Petitioner :- Surendra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Tapan Kumar Mishra, Mahesh Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondents.

There is an allegation of theft of electricity against the petitioner and proceedings under Section 135 of the Electricity Act are contemplated, the stage of the proceedings are not known at present but the fact remains that an alleged offence committed under the said provision is compoundable in terms of Section 152 of the Electricity Act, 2003.

So far as the assessment is concerned the same is a separate proceeding, according to the liability which can be fixed on the petitioner for having consumed actual electricity. Consequently for both the reliefs the petitioner can approach the concerned authority either for compounding and can approach the Executive Engineer concerned of the area with any request for installments as is being prayed for before this Court, keeping in view the provisions of Clause 6.14 of the U.P. Electricity Supply Code, 2005.

Accordingly, the writ petition is **disposed off** with the said observations.

Order Date :- 11.9.2017

M. ARIF